

HOUSE No. 5231

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 12, 2026.

The committee on Mental Health, Substance Use and Recovery, to whom was referred the petition (accompanied by bill, House, No. 2231) of Lindsay N. Sabadosa and Leigh Davis that the Department of Mental Health be authorized to establish peer-run respite centers, reports recommending that the accompanying bill (House, No. 5231) ought to pass.

For the committee,

MINDY DOMB.

HOUSE No. 5231

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing peer respites throughout the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 19 of the General Laws is hereby amended by inserting after
2 section 26 the following section:-

3 Section 27. (a) As used in this section, the following words shall, unless the context
4 clearly requires otherwise, have the following meanings:

5 “BIPOC”, Black, Indigenous and other People of Color.

6 “Guest”, an adult, 18 years of age or older, who has been accepted by and approved to
7 stay at and receive services from a peer respite.

8 “LGBTQIA+”, lesbian, gay, bisexual, transgender, queer, intersex, asexual and other
9 gender identities and sexual orientations that individuals may identify as but which may not fall
10 within the preceding classifications.

11 “Lived or living experience”, knowledge, understanding, expertise and insight into the
12 experiences, choices and options of an individual with behavioral health needs that is based on a

person's perspective, personal identities and history beyond their professional or educational experience and gained from such person's psychiatric history, traumatic experiences or history of facing or navigating other similar, life-interrupting challenges.

"Peer respite", a voluntary, short-term, community-based residential peer-run program that: (i) provides peer respite services on a 24-hour basis in a home-like environment to guests experiencing emotional or mental distress either as an immediate precursor to or as a part of a crisis; (ii) addresses social isolation and lack of social connectedness; and (iii) offers peer support and peer respite services by peer respite supporters and other individuals trained or in the process of completing training to provide such services pursuant to applicable department regulations, rules or other guidance; provided, that the department may promulgate regulations or issue further guidance regarding additional requirements of peer respites including, but not limited to, requirements regarding training, and access for guests with disabilities.

"Peer respite services", voluntary, short-term, trauma-informed, person-centered support and prevention services provided to peer respite guests that: (i) are the least restrictive of individual freedom; (ii) are culturally competent; (iii) focus on recovery, resiliency and wellness; and (iv) are not clinical services; provided, that the department may promulgate regulations or issue further guidance further defining peer respite services.

"Peer-run program", a peer respite that: (i) is a non-profit entity itself or within a non-profit entity; (ii) is controlled and operated by a majority of individuals who have lived or living experience; (iii) provides a venue for support and advocacy for individuals with similar experiences by peer respite supporters who have completed or are in the process of completing training required to work in a peer respite pursuant to applicable department regulations, rules or

other guidance; (iv) specializes in the provision of peer respite and peer support services; (v) has specialized in the provision of peer respite and peer support services for a minimum of 5 years; (vi) maintains sufficient capacity to provide all staff with adequate supervision; and (vii) does not provide clinical mental health services or in which clinical mental health services make up less than 10 per cent of primary services provided to guests; provided, that the department may promulgate regulations or issue further guidance regarding additional requirements of peer-run programs including, but not limited to, required supervision of staff by individuals with training and experience as a peer respite supporter and required accommodations for the disability-related needs of a guest.

“Peer respite supporters”, individuals working in peer respites who: (i) have completed or are in the process of completing training in the provision of peer support services pursuant to applicable department regulations, rules or guidance; (ii) have lived or living experience; and (iii) are trained in and capable of providing peer support and peer respite services.

“Peer support services”, assistance provided by peer respite supporters in peer respites that promotes engagement, socialization, recovery, self-sufficiency, self-advocacy, development of natural supports, identification of strengths and maintenance of skills learning in other support services; provided, however, that the department may promulgate regulations or issue additional guidance further defining peer support services.

(b) Subject to appropriation, the department shall establish a minimum of 14 regional peer respites, with at least 1 in each county throughout the commonwealth to ensure access in all geographic regions of the commonwealth; provided, that the department shall allocate and provide the funding necessary for and assist with the establishment of each peer respite;

provided, however, that said funding for peer respites shall be sufficient to ensure that each peer respite is capable of: (i) providing peer respite and peer support services; (ii) recruiting, training and retaining peer respite supporters; (iii) supervising and overseeing peer respite supporters; (iv) conducting informational sessions and training on the functions and qualifications of peer respite supporters; (v) compensating peer respite supporters at a rate sufficient to ensure the retention of highly trained and skilled peer respite supporters and to maximize the positive impact of their support; and (vi) performing data collection and reporting as required by the department.

(1) At least 2 of such peer respites shall specialize in serving LGBTQIA+ individuals and shall be geographically distributed so as to maximize access to peer respite services for LGBTQIA+ individuals in all regions of the commonwealth; provided, however, that such peer respites shall be managed, operated or controlled by individuals identifying as members of the LGBTQIA+ community who also have related lived or living experience.

(2) At least 2 of such peer respites shall specialize in serving members of the BIPOC community and shall be geographically distributed so as to maximize access to peer respite services for members of the BIPOC community in all regions of the commonwealth; provided, however, that such peer respites shall be managed, operated or controlled by individuals identifying as members of the BIPOC community who also have related lived or living experience.

(3) The department shall, prior to contracting for any new peer respite, conduct an analysis of existing peer respites and regional gaps in behavioral health services to ensure: (A) the continued operations of existing peer respites, subject to continued department approval; and (B) the need-driven creation of any new peer respites, which may include the creation of peer

respite specializing in the delivery of services to specific populations or underserved demographics; and provided further, that the department shall ensure that each peer respite for which funding is appropriated shall be established and begin operations not less than 18 months following such appropriation.

(c) Each peer respite shall: (i) be approved by the department to provide guests with peer respite and peer support services including, but not limited to, short-term, temporary lodging; (ii) be a peer-run program; (iii) employ peer respite supporters who have received and completed or who are in the process of completing training as required to perform their essential job functions, including, but not limited to, training required to serve LGBTQIA+ individuals and members of the BIPOC community; provided, however, that all peer respite supporters working in a peer respite specializing in serving LGBTQIA+ individuals or members of the BIPOC community shall complete training required to serve LGBTQIA+ individuals or members of the BIPOC community prior to their first day working at such peer respites; and (iv) be responsible for the provision, operation and control of peer respite facilities, peer respite services and peer support services.

(d) The department shall work with existing peer-run programs providing peer respite and peer support services to identify any additional training requirements for peer respite supporters, which may differ from training requirements for peer supporters or peer specialists working in other contexts, as well as a fidelity tool to establish and measure ongoing adherence to the basic components of each peer respite based on current leading guides to peer respites; provided, that the department shall work with existing peer-run programs, as well as stakeholders within the LGBTQIA+ and BIPOC communities, to develop any additional training requirements for peer

respite supporters working in peer respites specializing in serving LGBTQIA+ individuals or members of the BIPOC community.

(e) The department shall, in consultation with existing peer-run programs and individuals with experience and expertise in running peer-run programs, promulgate regulations and may issue further guidance regarding the establishment and operation of peer respites; provided, however, that such regulations or guidance shall employ definitions and criteria consistent with this section.

(f) Annually, not later than March 1, each peer respite shall report to the department in a form determined by the department site-specific information on: (i) the number of individuals served, including, but not limited to, the number of each guest's visits and length of stay per visit; (ii) criteria used by programs for intake, discharge and continued program eligibility, including, but not limited to, criteria for evaluating the appropriateness of a guest's stay at the peer respite; (iii) the process for receiving and responding to grievances; (iv) a self assessment, including outcomes measured and the process for evaluating outcomes; (v) staffing levels; (vi) staff experiences and perspectives; (vii) operating costs and all funding sources; (viii) the number of calls to and transports by emergency medical services or other first responders, if applicable; and (ix) any other information deemed relevant by the department.

(g) Annually, not later than October 1, the department shall prepare and submit a report to the joint committee on mental health, substance use and recovery, the joint committee on public health and the house and senate committees on ways and means that includes, but is not limited to: (i) its progress toward implementing this section; (ii) any challenges or barriers regarding implementation; (iii) the department's strategy for overcoming any identified

123 challenges or barriers; and (iv) a summary of annual reports received by the department under
124 subsection (f). The department shall publish the report on its public website.